IN THE NATIONAL COMPANY LAW TRIBUNAL,
NEW DELHI COURT III

Item No. 205
CAA-73(ND)/2022

IN THE MATTER OF:
MM/s. Knauf Gypsum India Pvt. Ltd. AND USG India Pvt Ltd.

…..APPLICANT/PETITIONER

SECTION
U/s 230/232

Order delivered on 03.02.2023

CORAM:
SHRI BACHU VENKAT BALARAM DAS, HON'BLE MEMBER (JUDICIAL)
SHRI ATUL CHATURVEDI, HON'BLE MEMBER (TECHNICAL)

PRESENT:

For the Applicant	: Mr. P. Nagesh Sr. Adv. Mr. Rajeev Kumar. Advocates.
For the RoC	: Ms. Shankri Mishra, Advocate.
For the IT Dept.	: Mr. Abhishek Maratha Sr SC & Mr. Pratyaksh Gupta Jr Sc

ORDER

We have heard the submissions made by Mr. P. Nagesh, Learned Senior Counsel appearing for the Applicant. Ms. Shankri Mishra, Learned Counsel appearing for the RD submits that she has no objection to the present scheme. Mr. Pratyaksh Gupta, Learned Counsel appearing for the Income Tax Department seeks further time to file the report.

It is seen from the records of this Tribunal that on 02.11.2022, granted one week time to the Income Tax Department for filing report as a last opportunity, failing which, it was observed that the matter will be heard in the absence of the report.

In the interest of justice, we grant one last opportunity to the Learned Counsel for the Income Tax Department for filing report, failing which the matter will be heard in the absence of the report.

List the matter on **14.02.2023.**

-SD-

(ATUL CHATURVEDI)
MEMBER (TECHNICAL)

-SD-

(BACHU VENKAT BALARAM DAS)
MEMBER (JUDICIAL)

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03.02.2023